

November 11, 2024

Kathy Hunter  
Acting Executive Director and Secretary  
Washington Utilities and Transportation Commission  
P.O. Box 47250  
Olympia, WA 98504-7250

**RE: Comments on Behalf of the Washington Clean Energy Coalition regarding Puget Sound Energy's public participation in IRP/ISP process (Docket U-240281)**

Dear Ms. Hunter,

The Washington Clean Energy Coalition ("WCEC") would like to comment on how PSE is engaging the public in the development of Integrated Resource Plans and how the process might be improved as the company embarks on creation of an Integrated System Plan in the coming months. Public participation was a topic of discussion at the UTC's October 25, 2024 hearing on implementation of HB-1589 as part of docket U-240281.

The WCEC is a coalition of volunteer representatives from environmental and civic organizations as well as individual activists and ratepayers. Our primary mission is to accelerate our state's transition to clean energy sources by engaging with PSE and the UTC. Some of our members have served on at least two of PSE's Integrated Resource Plan Advisory groups, giving us ample experience with what works and what could be improved.

We will focus on three areas where PSE could improve public access and participation:

1. Meeting types and venues
2. Advisory group membership
3. International Association for Public Participation ("IAP2") standards

## Meeting types and venues

PSE currently offers two types of online meetings for people who are interested in the policies and technologies that the company could deploy to serve future energy needs.

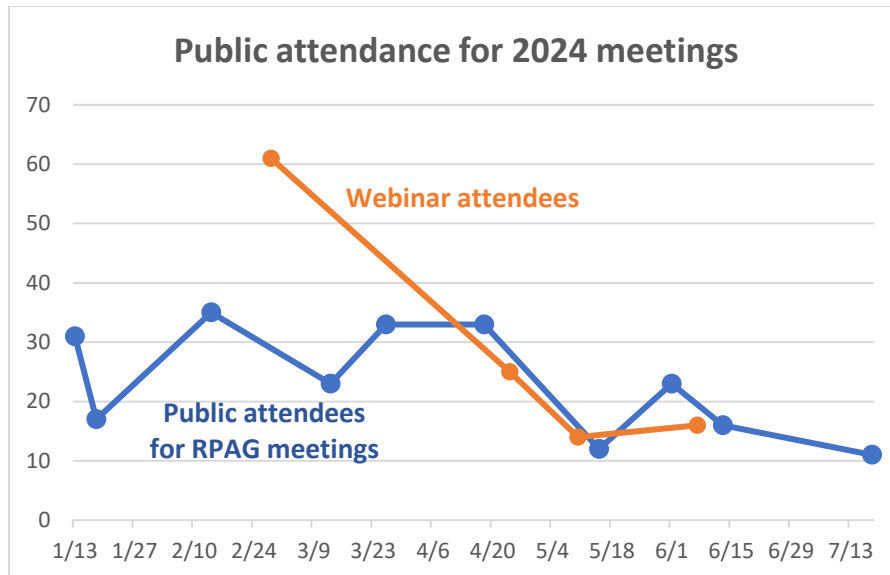
The **Resource Planning Advisory Group** ("RPAG") is restricted to about a dozen individuals who have been vetted and approved by PSE. While the public can watch these meetings online, the public is not allowed to comment, ask questions, or interact with PSE employees or RPAG members during the meeting. At the close of each meeting, a few members of the public may provide oral comments for a maximum of two minutes each, but they remain faceless (no visuals or video are allowed). PSE representatives and RPAG members do not respond to or engage in dialog with the public.

**Public webinars** are the second type of online meeting that PSE provides sporadically for members of the public who do not have the time (2-4 hours) or technical depth to follow RPAG meetings. During the public webinars, attendees can comment verbally or submit questions in the chat box, unlike at RPAG meetings. Video from the webinars can be viewed at any time on PSE's YouTube channel, which expands

their reach significantly beyond the few dozen attendees of the live event. Video of RPAG meetings is also available online, but PSE removes the footage after a few weeks.

For about a week following both RPAG meetings and public webinars, people can submit written comments to PSE. Sometime later, PSE provides a “feedback report” on its website containing responses to each comment. Their responses are typically quite brief, and the same answer is often used to respond to different comments. When asked how they felt about this practice, some commenters expressed frustration because the responses lacked detail. PSE often explains and justifies its policies with little consideration of the suggested changes.

The shortcomings of PSE’s current approach to public participation are reflected in the number of people attending the meetings, as shown in the graph below. Participation in the webinars has declined throughout the year. If the WCEC had found the webinars to be an effective way for our organization to influence energy policy, we would have promoted the meetings to our members and could easily triple attendance. Unfortunately, we feel that the PSE meetings are not an effective way to provide public input.



## Recommendations

Although online meetings are convenient for the public to attend, we find the online format does not promote public participation or diversity of voices in comparison to the in-person meetings that PSE held before the pandemic. The facilitator maintains tight control of when comments are allowed and who gets to speak. This discourages frank interchanges that used to occur in person. Participants cannot easily meet each other or talk together during meeting breaks. Spontaneous discussions and friendships among attendees have declined. The value of these unplanned connections is the main reason many companies have insisted that employees come back to the office for at least a few days per week.

We recommend that RPAG meetings be conducted in a **hybrid format**, where participants can choose to attend online or in person. Hybrid meetings have become standard procedure for municipal governments such as Bellevue, where PSE’s headquarters is located.

The content of the meeting is as important as the venue. For both RPAG meetings and public webinars, we recommend that PSE reserve at least one third of the meeting time for attendees to ask questions and discuss alternatives to PSE's proposals. After online meetings became PSE's preferred way of engaging with the public, PSE has often packed each meeting with so much information that participants have little time to engage in real discussions. There is no obvious time to discuss higher-level concepts and strategies without jeopardizing the agenda schedule. Consequently, information flows primarily from PSE to the public, rather than enabling and encouraging meaningful input and ideas from its customers.

## Advisory group membership

Some of the WCEC's members participated in IRP Advisory Group meetings for the 2015 and 2017 IRPs. For the 2019 IRP, PSE notified our members that they no longer met PSE's qualifications to participate in a newly minted "Technical Advisory Group." In response, we submitted applications and resumes which PSE accepted for admission to the group (for example, Don Marsh, Willard Westre, Virginia Lohr, Rob Briggs, Jim Adcock, and Norm Hansen).

For the 2021 IRP, PSE eliminated technical advisory group membership and held all meetings online. The meetings were open to anyone who wished to attend. Any person attending these meetings was able to ask questions orally or in the chat. This is the most open series of meetings PSE has held, and the nature of the interactions, while still too tightly controlled by PSE, was the most effective we have experienced to date.

However, PSE changed its strategy for the 2024 RPAG, limiting membership to only a dozen advisors with professional experience representing recognized large organizations of PSE's choice. PSE allows two representatives of an organization to attend the meetings, but only one representative is allowed to speak at any meeting. As a result of this restriction, PSE does not benefit from the knowledge and breadth the participants could provide. By denying the public any voice in the meetings, the company has effectively insulated itself from the knowledge and concerns that the company's customers and interested parties want to share.

PSE's efforts to tightly control RPAG membership were illustrated recently when Jim Dennison, the representative of the Sierra Club, had to withdraw from the RPAG. The Sierra Club nominated two members of its state energy committee to replace Mr. Dennison: Don Marsh, who also chairs meetings of the WCEC, and Dr. Kathleen Saul, a faculty member of Evergreen State College focused on environmental and energy policy. PSE rejected both candidates without comment, claiming the company must reexamine RPAG membership as it shifts to ISP planning. Unfortunately, this process will take months, and the Sierra Club has no voice during a critical period when the process for ISP planning is being developed.

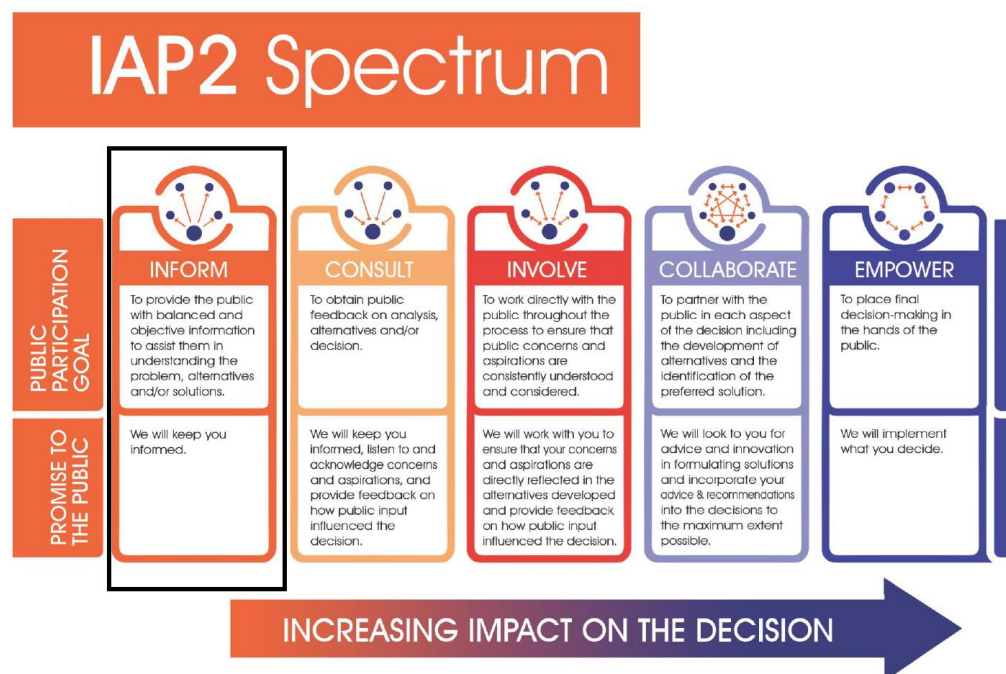
## Recommendations

The WCEC rejects PSE's theory that a dozen professional representatives are efficient and adequately represents the public's interest in the development of long-term energy plans. IRP Advisory Groups from 2015-2021 had at least a dozen volunteer members from the public, and those groups were not chaotic or unmanageable. With its new membership requirements, PSE attempts to "fix" a problem that was not apparent to anyone except PSE.

Given the pattern of the last decade, we believe PSE will try to select members according to its business needs, even if it harms public participation. We recommend that the public participation process be governed by principles other than the company's self-interest. One possibility is for the UTC to develop membership criteria and operating procedures to create an RPAG for the 2027 ISP. A better option is to return to meetings that are completely open, such as open meetings at the UTC.

## International Association for Public Participation (“IAP2”) standards

During the 2021 IRP process, the UTC considered requiring PSE to adhere to public participation standards published by IAP2. Although the UTC did not formally require PSE to adopt the standards, PSE has published IAP2 levels at the beginning of many presentations. Here is an example of one of these slides PSE used to set expectations for the discussion that followed:



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Although PSE's use of IAP2 standards was consistent and helpful during the 2021 IRP, the company has become more relaxed about the process after it became clear that the UTC would not mandate the use of IAP2.

At one of the first RPAG meetings (2/13/2024), we were encouraged that PSE chose the “Collaborate” level of participation for a discussion on equity in distribution system planning. Unfortunately, that was the only “Collaborate” level topic so far for this entire year. PSE omitted the IAP2 level for nearly half of its presentations.

The following chart shows the maximum level chosen by PSE for 28 topics that were addressed in RPAG and webinar meetings throughout the year:



When the number of “Inform” topics is combined with the 13 topics lacking an IAP2 rating, PSE did not invite public feedback for over half (57%) of these discussions. This does not meet the integral role of public participation expected in Washington Administrative Code 480-90-238(5).

## Recommendations

We ask the UTC to require PSE to train staff in the effective use of IAP2 principles and to require PSE to publish a single IAP2 level for any topic discussed in IRP/ISP meetings. To fulfill the expectations of public participation, the IAP2 levels should mostly be at the Consult level or above. PSE must also commit to the “promise” part of IAP2, explicitly telling public commenters how PSE’s energy policy is “influenced,” “directly reflects,” or “incorporates” their feedback (see the promise language on the IAP2 slide shown above).

PSE’s Feedback Report for the 2/13/2024 RPAG meeting<sup>1</sup> demonstrates our concerns. As noted above, this is the only RPAG meeting that had a “Collaborate” level. That level carries the following promise: “We will look to you for advice and innovation in formulating solutions and incorporate your advice & recommendations into the decisions to the maximum extent possible.” When you read PSE’s responses in the Feedback Report, the company clearly falls short of this promise. The responses are mostly defensive and provide little indication that PSE has changed anything in response to our detailed suggestions, including how to improve public participation.

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<sup>1</sup> [https://www.pse.com/-/media/PDFs/IRP/2024/02132024/2024\\_0213\\_FeedbackReport\\_Final.pdf](https://www.pse.com/-/media/PDFs/IRP/2024/02132024/2024_0213_FeedbackReport_Final.pdf)

## Conclusion

PSE uses public participation methods that are inadequate to achieve serious public input. The trend has been toward greater control for PSE and less opportunities for the public. Greater participation would enable the public and PSE to work collaboratively to solve the challenges that confront us and future generations.

We encourage the Commissioners to discuss these issues and recommendations with Joel Nightingale, the UTC's representative on the RPAG. The WCEC welcomes the opportunity to work with the UTC and its staff to further develop practices that serve all our needs.

Sincerely,

Don Marsh, Chair  
Washington Clean Energy Coalition